

**BEFORE THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS
OF THE STATE OF IOWA**

IN THE MATTER OF LEANNE BENDER License No. 121349 RESPONDENT	CASE NO.: 24-0357 VOLUNTARY SURRENDER OF LICENSE THROUGH CONSENT ORDER
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COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Leanne Bender (“Respondent”), and enter into this Voluntary Surrender of License through Consent Order (“Voluntary Surrender”) pursuant to Iowa Code sections 17A.10(1) and 272C.3(4).

A. JURISDICTION AND BACKGROUND

1. **Iowa License.** Respondent was issued Iowa license number 121349 on August 21, 2023. Respondent’s Iowa temporary mental health counselor license is active and expires on August 21, 2026.

3. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapter 154D.

B. STATEMENT OF CHARGES

COUNT I

4. Respondent is charged under Iowa Administrative Code rule 481-893.1(2)(a) with engaging with sexual contact with a current client.

COUNT II

5. Respondent is charged under Iowa Administrative Code rule 481-893.1(1)(b)3 with failing

to comply with the Code of Ethics of the American Counseling Association, specifically engaging in a dual relationship with a client.

C. FACTUAL CIRCUMSTANCES

6. In August of 2024, the Respondent engaged in a romantic and sexual relationship with a current client to whom she provided therapeutic services.

D. SETTLEMENT AGREEMENT

7. Without admission of wrongdoing or guilt, Respondent does not contest the violations alleged in the above-stated statement of charges.

8. Respondent acknowledges that they have a right to a hearing before the Iowa Board of Behavioral Health Professionals on the merits of the charges. By freely and voluntarily entering into this Voluntary Surrender, Respondent waives their right to a hearing and all attendant rights, including the right to seek judicial review. This Voluntary Surrender constitutes the final agency order in this contested case pursuant to Iowa Code § 17A.10.

9. Respondent agrees that the Assistant Attorney General may present this Voluntary Surrender to the Iowa Board of Behavioral Health Professionals and may have *ex parte* communications with the Iowa Board of Behavioral Health Professionals while presenting it. Respondent waives any right of notice of this meeting or any right that the Respondent might have to participate in the discussion of this Voluntary Surrender among the Iowa Board of Behavioral Health Professionals and the Assistant Attorney General.

10. This Voluntary Surrender shall be part of the disciplinary record and permanent licensure file of Respondent and shall be considered by the Iowa Board of Behavioral Health Professionals in determining the nature and severity of any future disciplinary action to be imposed in the event

of any future violations of the laws and rules governing the practice of mental health counseling by the Respondent.

11. Respondent shall at all future times fully and promptly comply with all pertinent orders of the Board and the statutes and Board rules regulating the practice of mental health counseling. Failure to comply with the terms of this Voluntary Surrender shall be *prima facie* evidence of a violation of Iowa Code §272C.3(2)(a) and shall be grounds for further disciplinary action. However, no action may be taken against Respondent for violations of this Voluntary Surrender without a hearing, or waiver of hearing.

12. This Voluntary Surrender is not binding on Respondent or the Iowa Board of Behavioral Health Professionals until it has been formally approved by a majority of the Iowa Board of Behavioral Health Professionals members.

(a) In the event that this Voluntary Surrender is rejected by the Iowa Board of Behavioral Health Professionals it shall be of no force or effect to either party and it shall not be admissible for any purpose in further proceedings in this matter.

(b) If the Iowa Board of Behavioral Health Professionals approves this Voluntary Surrender, it shall fully dispose of all issues in this case.

13. Upon acceptance by both the Board and Respondent, this Voluntary Surrender shall be a public record available for inspection and copying in its entirety in accordance with the requirements of Iowa Code chapter 22.

14. Respondent understands that the Board is required by Federal law to report this Voluntary Surrender to the National Practitioner Database.

15. Respondent shall submit a copy of this Voluntary Surrender to all other state licensing boards where Respondent holds a temporary or full mental health counselor license, whether active or not, within **THIRTY days** of the date of the Board approval of this Voluntary Surrender.

CONSENT ORDER

IT IS THEREFORE ORDERED:

A. VOLUNTARY SURRENDER: The Respondent voluntarily agrees to surrender her Iowa License 123149 to the Iowa Board of Behavioral Health Professionals as sanction for the above-admitted violation. The effective date of the license surrender shall be the date this Voluntary Surrender is accepted by the Board.

B. LICENSEE REAPPLICATION: Reinstatement of Respondent's Iowa license shall be governed by Iowa Code § 272C.15. Respondent specifically acknowledges that pursuant to this agreement, Respondent shall not be eligible to seek reinstatement of their license for a minimum of one year from the date her license surrender is effective.

WHEREFORE, the terms of this Voluntary Surrender of License through Consent Order is agreed to by the Iowa Board of Behavioral Health Professionals and Respondent.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Leanne Bender on this 19 day of June, 2025.


By: Leanne Bender, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS** on this 29th day of July, 2025.

Aaron L Culley, LSW

Aaron Culley, Chair
Iowa Board of Behavioral Health Professionals